

		The Court finds Manouchag Litzen, the surviving spouse of plaintiff Charles Litzen (“Decedent”), has complied with the requirements set forth in Code of Civil Procedure Section 377.32. Therefore, the motion is GRANTED.
6.	MARINERO VS. TRIANA 2022-01298697	MOTION TO SUBSTITUTE PLAINTIFF The motion for Jose Chicas, as Successor Trustee of The Arcadia Marinero Family Trust dated April 27, 2021, to be appointed as successor in interest to plaintiff and decedent Arcadia Marinero is GRANTED. “A pending action or proceeding does not abate by the death of a party if the cause of action survives.” (Code Civ. Proc. §377.21.) “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest.” (Code Civ. Proc. §377.31.) Code of Civil Procedure section 377.32 provides the procedural requirements for a successor in interest to substitute in as plaintiff. Specifically, section 377.32 provides: “(a) The person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest under this article, shall execute and file an affidavit or a declaration under penalty of perjury under the laws of this state stating all of the following: (1) The decedent's name. (2) The date and place of the decedent’s death. (3) No proceeding is now pending in California for administration of the decedent's estate. (4) If the decedent’s estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest. (5) Either of the following, as appropriate, with facts in support thereof: (A) The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding. (B) The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding.

		(6) No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding. (7) The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct. (b) Where more than one person executes the affidavit or declaration under this section, the statements required by subdivision (a) shall be modified as appropriate to reflect that fact. (c) A certified copy of the decedent's death certificate shall be attached to the affidavit or declaration.” (Code Civ. Proc. § 377.32 (internal quotations omitted).) Here, on 4/10/25, plaintiff Arcadia Marinero (“Plaintiff”) filed a Notice of Settlement (conditional). (ROA No. 83.) The following day, Plaintiff and defendant Miriam Triana (“Defendant”) settled via Settlement Agreement and Release of Claims. (Ex. 1.) Thereafter, on 9/11/25, Plaintiff passed away in El Salvador. (Chicas Decl., ¶ 2, Ex. 2.) Prior to her death, Plaintiff established The Arcadia Marinero Family Trust dated April 27, 2021. Pursuant to the Trust instrument, Jose Chicas was designated as Successor Trustee. (Chicas Decl., ¶ 1, Ex. 3.) To date, a Request for Dismissal has not been filed and an OSC re Dismissal is set for 6/29/26. (See ROA 96.) Therefore, the action remains pending. In the motion, Jose Chicas alleges Defendant has not complied with the terms of the Settlement Agreement. Plaintiff’s counsel previously advised the Court that they intended to file a motion to enforce the Settlement Agreement. (See ROA 96.) The Court finds Jose Chicas has submitted a declaration that complies with the requirements set forth in Code of Civil Procedure Section 377.32. Therefore, the motion is GRANTED.
7.	ALCANTAR VS. JOHNSON 2025-01482892	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT Plaintiff’s Motion for Leave to Amend Complaint is GRANTED. Plaintiff seeks leave to amend the complaint to allege facts related to the alleged liability of Lordon Enterprises, Inc., which was identified as Doe 2 in Plaintiff’s fictitious name amendment filed on 8/11/25. Plaintiff seeks to allege that Lordon Enterprises is liable as a property management company responsible for maintenance work at the property where Plaintiff alleges he was injured by a faulty ladder while performing roofing work. (Proposed Amended Complaint, ¶¶ 11-20.)